

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.,

**JOINT STATUS REPORT AND MOTION TO EXTEND THE DEADLINE TO COMPLETE
DISCOVERY**

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹. (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report and motion to extend the deadline to complete discovery pursuant to the Presiding Officer’s Fourth Amended Scheduling Order of November 17, 2025 (the “Fourth Amended Scheduling Order”), and in support thereof state that good cause for the requested extension exists, as follows:

1. Rule 102(a) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: “Motions for enlargement or reduction of

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023, by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.”

2. On November 3, 2025, the Parties filed a Joint Status Report and Motion to Extend Deadlines based upon the Parties’ necessity to extend the deadline for fact depositions by one week to accommodate the deposition for Amanda Jacobus of Yusen Logistics (Americas) Inc., held on November 6, 2025. for Yusen Logistics (Americas) Inc. (“Yusen”) documents and the testimony of Yusen employees.

3. Following the government shutdown and receipt of the motion on November 13, 2025, on November 17, 2025, the Presiding Officer entered the Fourth Amended Scheduling Order, which established the current discovery schedule in this proceeding. The Fourth Amended Scheduling Order approved the new deadline of November 7, 2025 to complete depositions of third-party fact witnesses to allow for deposing Amanda Jacobus.

4. The Parties also met on November 14, 2025 to hold a meet and confer to discuss outstanding discovery issues, following a series of correspondence during the prior three weeks. In addition to the substance of discovery matters, the Parties discussed the proposed limited extensions subject of this Motion, which were later confirmed by email on November 14 and 17, 2025.

5. Counsel for the Parties agree that, under the circumstances, this Joint Status Report and Motion to Extend the Deadline to Complete Discovery is warranted for good cause and that prejudice to both Parties would result if an extension of time to complete discovery is not granted.

6. The Parties have conferred and arrived at the following proposed revised schedule, extending the period for expert reports, clarifying when Complainant’s and Respondents’ expert reports are due, and shortening the time for expert depositions, leading ultimately to a 10-day requested extension to the close of discovery that would ***not affect the timing for the Parties to***

submit their briefing to the Presiding Officer. These limited changes to the remaining schedule will allow for additional review and resolution of the outstanding discovery disputes, including allowing for adequate time for all experts to review any corrected information, without extending either Party's deadline to file their brief. The proposed, revised schedule accommodates the Parties' needs regarding upcoming end-of-year holidays and availability to complete all necessary discovery, without adjusting the briefing schedule. ***The Parties agree that all other deadlines in this proceeding will remain as scheduled by the Fourth Amended Scheduling Order and are not seeking any other extension or amendment to the schedule at this time.***

7. Complainant is seeking approximately \$86,000,000 in reparations in this case. Given the scope and complexity of the claims and defenses, and the challenges posed by the non-party depositions, the Parties believe it would be most effective, efficient and preserve the Parties' due process rights by allowing the Parties to move forward with this case on the following proposed, revised schedule:

December 2, 2025	Disclosure of Complainant's expert reports, if any
December 23, 2025	Disclosure of Respondents' expert reports, if any
January 16, 2026	Complete expert depositions; close of discovery
February 6, 2026	Complainant's initial brief, proposed findings of fact, and appendix
March 6, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
March 20, 2026	Complainant's reply and responses to proposed findings of fact

8. In making this joint motion, the Parties here have limited their request to a reasonable amount of time to complete discovery and expert reports while keeping all other deadlines set forth in the Fourth Amended Scheduling Order the same. Further, the Parties believe that the foregoing schedule is a realistic period to complete expert discovery and address remaining discovery disputes.

9. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether

there is any opposition to the relief sought, to which there is none. The Parties each respectfully request the Presiding Officer grant the relief sought in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend the Deadline to Complete Depositions of Fact Witnesses be granted.

Dated: November 17, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

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